

Syed Muzaffar Ali v. M.D. Uttar Pradesh Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 February 2018 · WRIT - C No. 1802 of 2018 · **Writ disposed; cl. 6.14 instalment plea to be decided; recovery stayed six weeks.**

HEADNOTE

A consumer who does not contest outstanding electricity dues on merits but seeks to pay in instalments is relegated to Clause 6.14 of the Electricity Supply Code, 2005. The competent authority must decide the instalment application in accordance with law by a reasoned speaking order; coercive recovery under the citation may be stayed for a short period pending that decision.

FACTUAL SUMMARY

Syed Muzaffar Ali challenged a recovery citation issued against him for outstanding electricity dues. At the hearing he did not contest the demand on merits and offered to pay the entire amount if allowed to do so in instalments. Counsel for Uttar Pradesh Power Corporation Ltd. pointed to Clause 6.14 of the Electricity Supply Code, 2005, under which a consumer in financial distress may seek an instalment facility from the licensee. Earlier listings had been adjourned for instructions and on joint request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding dues

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005 confers power on the licensee to extend an instalment facility to consumers in financial distress. A consumer who does not contest outstanding dues on merits but seeks to pay in instalments must apply to the Executive Engineer or other competent authority under that clause. The writ was disposed of with a direction that if such an application is made within two weeks, the authority shall decide it in accordance with law by a reasoned speaking order within four weeks; coercive action on the impugned recovery citation is stayed for six weeks or until disposal of the application, whichever is earlier. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE IMPUGNED RECOVERY CITATION

The petitioner expressly declined to contest the dues on merits and sought only an instalment facility. ¶ 3